

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1413
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 28-645, Arizona Revised Statutes, is amended
3 to read:

4 28-645. Traffic control signal legend

5 A. If traffic is controlled by traffic control signals exhibiting
6 different colored lights or colored lighted arrows successively one at a
7 time or in combination, only the colors green, red and yellow shall be
8 used, except for special pedestrian signals carrying a word legend. The
9 lights shall indicate and apply to drivers of vehicles and pedestrians as
10 follows:

11 1. Green indication:

12 (a) Vehicular traffic facing a green signal may proceed straight
13 through or turn right or left unless a sign at that place prohibits either
14 turn. Vehicular traffic, including vehicles turning right or left, shall
15 yield the right-of-way to other vehicles and to pedestrians lawfully
16 within the intersection or an adjacent crosswalk at the time the signal is
17 exhibited.

18 (b) Vehicular traffic facing a green arrow signal, shown alone or
19 in combination with another indication, may cautiously enter the
20 intersection only to make the movement indicated by such arrow or such
21 other movement as is [permitted] [ALLOWED] by other indications shown at
22 the same time. Vehicular traffic shall yield the right-of-way to
23 pedestrians lawfully within an adjacent crosswalk and to other traffic
24 lawfully using the intersection.

25 (c) Unless otherwise directed by a pedestrian control signal as
26 provided in section 28-646, pedestrians facing any green signal, except if
27 the sole green signal is a turn arrow, may proceed across the roadway
28 within any marked or unmarked crosswalk.

1 2. Steady yellow indication:

2 (a) Vehicular traffic facing a steady yellow signal is warned by
3 the signal that the related green movement is being terminated or that a
4 red indication will be exhibited immediately thereafter when vehicular
5 traffic shall not enter the intersection.

6 (b) Unless otherwise directed by a pedestrian control signal as
7 provided in section 28-646, pedestrians facing a steady yellow signal are
8 advised by the signal that there is insufficient time to cross the roadway
9 before a red indication is shown and a pedestrian shall not then start to
10 cross the roadway.

11 3. Red indication:

12 (a) Except as provided in subdivisions (b) and (c) of this
13 paragraph, vehicular traffic facing a steady red signal alone shall [SLOW
14 THE VEHICLE TO A COMPLETE] stop before entering the intersection and shall
15 remain standing until an indication to proceed is shown. [A VIOLATION OF
16 THIS SUBDIVISION OCCURS IF A VEHICLE FAILS TO SLOW TO A COMPLETE STOP AND
17 BUT FOR ANOTHER VEHICLE OR OTHER OBSTRUCTION WOULD HAVE ENTERED THE
18 INTERSECTION.] On receipt of a record of judgment for a violation of this
19 subdivision or an act in another jurisdiction that if committed in this
20 state would be a violation of this section, the department shall order the
21 person to attend and successfully complete traffic survival school
22 educational sessions within sixty days after the department issues the
23 order. Notwithstanding section 28-3315, if the person fails to attend or
24 successfully complete traffic survival school educational sessions, the
25 department shall suspend the person's driving privilege pursuant to
26 section 28-3306 until the person attends and successfully completes
27 traffic survival school educational sessions. A person whose driving
28 privilege is suspended pursuant to this subdivision may request a hearing.
29 If the person requests a hearing, the department shall conduct the hearing
30 as prescribed in section 28-3306. A law enforcement officer or a
31 jurisdiction issuing a citation to a person who violates this subdivision
32 shall provide written notice to the person that if eligible, the person
33 may attend defensive driving school or, if not eligible or if the person
34 chooses not to attend defensive driving school and is found responsible or
35 enters a plea of responsible for a violation of this subsection, the
36 person must attend and successfully complete traffic survival school
37 educational sessions. The notice shall include a reference to red light
38 violations and state that if the person is required to attend traffic
39 survival school the person will receive notice from the motor vehicle
40 division.

41 (b) The driver of a vehicle that is stopped in obedience to a red
42 signal and as close as practicable at the entrance to the crosswalk on the
43 near side of the intersection, or if there is no crosswalk, then at the
44 entrance to the intersection, may make a right turn but shall yield the
45 right-of-way to pedestrians and other traffic proceeding as directed by
46 the signal. A right turn may be prohibited against a red signal at any

1 intersection if a sign prohibiting the turn is erected at the
2 intersection.

3 (c) The driver of a vehicle on a one-way street that intersects
4 another one-way street on which traffic moves to the left shall stop in
5 obedience to a red signal but may then make a left turn into the one-way
6 street. The driver shall yield the right-of-way to pedestrians and other
7 traffic proceeding as directed by the signal at the intersection, except
8 that such left turn may be prohibited if a sign prohibiting the turn is
9 erected at the intersection.

10 (d) Unless otherwise directed by a pedestrian control signal as
11 provided in section 28-646, a pedestrian facing a steady red signal alone
12 shall not enter the roadway.

13 B. If an official traffic control signal is erected and maintained
14 at a place other than an intersection, this section applies except as to
15 those provisions of this section that by their nature can have no
16 application. Any stop required shall be made at a sign or marking on the
17 pavement indicating where the stop shall be made, but in the absence of a
18 sign or marking the stop shall be made at the signal.

19 C. The driver of a vehicle approaching an intersection that has an
20 official traffic control signal that is inoperative shall bring the
21 vehicle to a complete stop before entering the intersection and may
22 proceed with caution only when it is safe to do so. If two or more
23 vehicles approach an intersection from different streets or highways at
24 approximately the same time and the official traffic control signal for
25 the intersection is inoperative, the driver of each vehicle shall bring
26 the vehicle to a complete stop before entering the intersection and the
27 driver of the vehicle on the left shall yield the right-of-way to the
28 driver of the vehicle on the right.>>

29 Sec. 2. Section 28-672, Arizona Revised Statutes, is amended to
30 read:

31 28-672. Causing serious physical injury or death by a moving
32 violation; time limitation; penalties; violation;
33 classification; definition

34 A. A person is guilty of causing serious physical injury or death
35 by a moving violation if the person violates any one of the following and
36 the violation results in [OR OCCURS SIMULTANEOUSLY WITH OR IN THE COURSE
37 OF] an accident causing serious physical injury or death to another
38 person:

- 39 1. Section 28-645, subsection A, paragraph 3, subdivision (a).
- 40 2. Section 28-710.
- 41 3. Section 28-729.
- 42 4. Section 28-771.
- 43 5. Section 28-772.
- 44 6. Section 28-773.
- 45 7. Section 28-792.
- 46 8. Section 28-794.
- 47 9. Section 28-797, subsection F, G, H or I.

1 10. Section 28-855, subsection B.

2 11. Section 28-857, subsection A.

3 12. Section 28-914.

4 B. A person who violates this section shall attend and successfully
5 complete traffic survival school educational sessions that are designed to
6 improve the safety and habits of drivers and that are approved by the
7 department. In addition, the court may order the person to perform
8 community restitution.

9 C. The court shall report a conviction for a violation of this
10 section to the department and:

11 1. For a first violation of this section, shall direct the
12 department to suspend the person's driving privilege or restrict the
13 person's driving privilege as described in section 28-144 for at least
14 ninety days and not more than one hundred eighty days if the violation
15 results in serious physical injury and at least one hundred eighty days
16 and not more than one year if the violation results in death.

17 2. For a second or subsequent violation of this section within a
18 period of thirty-six months, shall direct the department to suspend the
19 person's driving privilege for one hundred eighty days if the violation
20 results in serious physical injury and one year if the violation results
21 in death.

22 D. If a person's driving privilege is suspended pursuant to any
23 other statute because of an incident involving a violation of this
24 section, the suspension period prescribed in subsection C of this section
25 shall run consecutively with the other suspension period.

26 E. If a person fails to successfully complete traffic survival
27 school educational sessions or perform community restitution pursuant to
28 this section, the court shall notify the department and the department
29 shall promptly suspend the driver license or permit of the driver or the
30 privilege of a nonresident to drive a motor vehicle in this state until
31 the order is satisfied.

32 F. If the person who suffers serious physical injury as a result of
33 a violation of this section appears before the court in which the action
34 is pending at any time before trial and acknowledges receipt of
35 satisfaction for the injury, on payment of the costs incurred, the court
36 shall order that the prosecution be dismissed and the defendant be
37 discharged. The reasons for the order shall be set forth and entered of
38 record, and the order shall be a bar to another prosecution for the same
39 offense.

40 ~~G. Restitution awarded pursuant to section 13-603 as a result of a~~
41 ~~violation of this section shall not exceed \$100,000.~~

42 H. G. A prosecution for a violation of this section must be
43 commenced within two years after actual discovery of the offense by the
44 state or the political subdivision having jurisdiction or discovery by the
45 state or the political subdivision that should have occurred with the
46 exercise of reasonable diligence, whichever first occurs.

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1 ~~I.~~ H. A person who violates this section is guilty of a class 1
2 misdemeanor.

3 ~~I.~~ I. For the purposes of this section, "serious physical injury"
4 has the same meaning prescribed in section 13-105.

5 Enroll and engross to conform

6 Amend title to conform

And, as so amended, it do pass

QUANG H. NGUYEN
CHAIRMAN

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C: JR

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